improvement in science, to refinement of taste, and in manners, without, at the same time, acquiring a refinement in their ideas of justice, and feelings of humanity."[1]

IRELAND[2]

DUBLIN. I was happy in finding at Dublin in 1779, a new prison almost ready for the removal of the prisoners into more airy and convenient apartments, in which I hoped the shocking intercourse of the two sexes which took place in the old prison, would be avoided. This new prison is one hundred and seventy feet in length, and has separate courts for men and women. The cells on the first and second floors are about twelve feet by eight, and on the upper floor twelve by four, all arched with brick, to prevent danger from fire. I was sorry to find dungeons, and wished they might never be used, except at night for the condemned. It might be best to convert the chapel at the top of the house into an infirmary; for the sick rooms are too small, and likely to produce infection.

In the two courts are pumps. Great attention should be paid to air and cleanliness in the staircases, cells and vaults, and in the narrow passages, to prevent them from becoming offensive and infectious.[3] I well remember the dreadful state of Dublin Newgate in the beginning of the year 1775, when I saw numbers of poor creatures ill with the gaol-fever, unattended and disregarded.

The criminals in the gaols of Ireland are very numerous. One reason of this may be, that in this country there are no houses of correction, unless cages could be called so, in which drunken or riotous persons are locked up for a night or two.[4]

[1] Hugo Arnot's *History of Edinburgh*, p. 298.

[2] I have frequently referred, in the early parts of this work, to the Irish Acts of Parliament for the regulation of prisons, as containing many articles highly laudable and worthy of imitation. I am sorry, however, that it is necessary for me to say, that the policy of this country in these matters is as defective in point of execution, as it is commendable in theory.

[3] The passages are three feet and a half wide, and the staircases only two feet one inch.

[4] It may be an exception, that in a house adjoining to old Newgate called the "Black Dog," there were several fines, etc., and that in another house (a sort of bridewell adjoining to the workhouse in Dublin) I found in 1779 eleven young creatures; some of these for small offences were confined with outrageous lunatics. The magistrates seem to have overlooked a compassionate direction in an Act of their legislature (see 3rd of Geo. III, chap. xxviii) "that persons of insane mind and outrageous behaviour" are not to go in common with the other prisoners.

Another reason is, that acquitted persons are continued in confinement till they have discharged their fees to the clerk of the crown, or peace, the sheriff, gaoler and turnkey. Even boys almost naked, and under the age of twelve, are sometimes confined a year or two for these fees, though amounting to no more than about forty shillings. How surprising is it, that any kingdom can endure such injustice! It is a particular aggravation of it, that the prisoners thus confined, generally lose, at the same time, their allowance of bread. I have heard that Judge Aston (who was here Lord Chief Justice of the Common Pleas) often ordered the acquitted prisoners to be discharged. In 1779 I obtained the release of some boys from the county gaol at Kilmainham, on paying for them half fees; and of some others from Newgate, the sheriffs of Dublin consenting to relinquish their fees. But as those boys had been associated with the most profligate and abandoned felons for many months, I did not in the least wonder to find that some of them returned to their former habitation in a few days. In 1783 the deputy keeper of the new prison gave me a list of sixteen detained for their fees. At Kilmainham also I found there were fifteen acquitted prisoners confined for their fees in the dungeons. At both these prisons I restored to their families several who seemed the most proper objects of compassion. Some had children dying with the smallpox, others had hardly rags to cover them. But this distress had no more effect on the clerk of the crown, sheriffs and gaolers, than to engage them to give up half their fees.

In 1782, a Bill was brought in by Mr. Provost Hutchinson,[1] which passed into an Act for discharging all those who were then in confinement for fees only (twenty-first and twenty-second of George III, chap. xli). I have every reason to hope, from the attention and humanity of this gentleman, that during the present session, a perpetual Act for the same purpose will be passed.

On passing the old prison frequently, I could not avoid observing officers from the recruiting regiments waiting at the doors and windows, to receive either the offenders who were permitted to enlist, or any of their associates. When the excessive profligacy and daring wickedness of this set of people is considered, the most melancholy apprehensions must be

[1] I shall always reflect with pleasure on the unexpected honour which at this time was done me by the college, by presenting me with the degree of Doctor of Laws.